

4.	26CV0127	EUGENE FRUEAN VS. COUNTY OF EL DORADO
MOTION TO COMPEL		

Respondent, County of El Dorado (“Respondent”), filed a Motion to Compel Discovery Responses and Document Production; Request for Monetary Sanctions on June 3, 2026. Respondent seeks an order compelling Petitioner to serve further responses to Respondent’s Special Interrogatories, Set One and Request for Production of Documents, Set One along with the accompanying document production within five days of the order, as well as sanctions in the amount of \$7,454.

Special Interrogatories

SPECIAL INTERROGATORY NO. 1: State the first date on which YOU¹ contacted an attorney or law firm after the INCIDENT².

RESPONSE TO SPECIAL INTERROGATORY NO. 1: Objection. The interrogatory is vague, ambiguous, and overbroad. The interrogatory is not full and complete of itself and improperly includes separate definitions and prefatory instructions in violation of Code of Civil Procedure section 2030.060. The interrogatory seeks information protected by the attorney client privilege. The interrogatory seeks information that is not relevant nor reasonably calculated to lead to the discovery of admissible evidence.

AMENDED RESPONSE TO SPECIAL INTERROGATORY NO. 1: Objection. The interrogatory is vague, ambiguous, and overbroad. The interrogatory is not full and complete of itself and improperly includes separate definitions and prefatory instructions in violation of Code of Civil Procedure section 2030.060. The interrogatory seeks information protected by the attorney client privilege. The interrogatory seeks information that is not relevant nor reasonably calculated to lead to the discovery of admissible evidence.

Subject to and without waiving the forgoing objections, Responding Party responds as follows: In or about October 2024, while Petitioner remained hospitalized as a quadriplegic requiring 24/7 care and suffering from significant ongoing medical complications, Petitioner’s family contacted a workers’ compensation attorney on his behalf. Due to the severity of his injuries and medical condition, Petitioner was physically incapable of pursuing legal matters, including contacting counsel or investigating potential claims. The family’s contact with a workers’ compensation attorney was solely for the limited purpose of securing urgently needed

¹ “YOU” and “YOUR” shall mean Eugene Fruean or anyone acting on his behalf.

² “INCIDENT” shall mean the truck accident identified in the PETITION.

“PETITION” shall mean Petitioner’s Petition for Relief from Government Claim Filing Requirements (Government Code § 946.6) served on the County on February 10, 2026.

medical treatment and wage replacement benefits to sustain Petitioner's care and survival following the subject motor vehicle collision, which occurred while Petitioner was working.

Respondent argues Plaintiff's "substantive" response is non-responsive, evasive, and avoids the direct call of the question. Respondent seeks the exact date Petitioner or someone on his behalf contacted any attorney in relation to the accident. Petitioner's response leaves open the interpretation that Petitioner contacted some other attorney first and earlier.

The Court finds that Plaintiff's amended response sufficiently answered the call of the question. Respondent's request is denied.

Requests for Production of Documents

REQUEST FOR PRODUCTION OF DOCUMENTS NO. 4: All CORRESPONDENCE¹ between YOU² and any other PERSON³ relating to the INCIDENT⁴. (Excluded from this request is all correspondence with your attorney).

RESPONSE TO REQUEST FOR PRODUCTION OF DOCUMENTS NO. 4: Objection. The request is vague, ambiguous, overbroad, too general, and not reasonably particularized, as required by Code of Civil Procedure section 2031.030(c)(1), especially due to the use of the terms "relating to", "CORRESPONDENCE," "YOU," and "any other PERSON," including the overbroad definitions of same. These deficiencies make responding to the request unduly burdensome, and essentially impossible, as it is unclear what is sought by the request. The request also seeks information and documents protected from disclosure by the attorney client privilege and attorney work product doctrine. The request seeks information that is not relevant nor reasonably calculated to lead to the discovery of admissible evidence.

Respondent agrees that the request is overbroad and narrowed the requests during meet-and-confer negotiations to correspondence (i.e., texts, emails, letters) about the accident and or the resulting injuries between: 1) Petitioner and his sons; 2) Petitioner and his wife; 3) Petitioner and his employer; 4) Petitioner's son Manuia and any other person when the former was acting at Petitioner's behest; 5) Petitioner's wife and any other person when the former was acting at

¹ "CORRESPONDENCE" shall be deemed to include all forms of written communication, including letters, faxes, emails, deleted emails, instant messages, text messages, communications constituting "DOCUMENT(s)" as that term is defined above, and all other forms and means of written communication, including communication made via "electronic" means.

² "YOU" and "YOUR" shall mean Eugene Fruean or anyone acting on his behalf.

³ "PERSON" shall be deemed to include natural persons, partnerships, firms and corporations, and all of their subsidiaries or divisions and, in the case of partnerships, firms and corporations, the individual member(s) or agent(s) thereof with the knowledge of the requested information.

⁴ "INCIDENT" shall mean the truck accident identified in the PETITION. "PETITION" shall mean Petitioner's Petition for Relief from Government Claim Filing Requirements (Government Code § 946.6) served on the County on February 10, 2026.

Petitioner's behest; 6) Petitioner (or his family) and any attorney they did not retain (the request does not seek communications with retained counsel).

The Court finds Respondent's request is overbroad as to time and scope and requests documents protected by attorney-client privilege. The Court grants Respondent's motion to compel in part, in such that Petitioner shall provide all correspondence (i.e., texts, emails, letters) relating to the incident between the following individuals from the date of the incident (July 10, 2024) to the date the Petition for Relief was filed (January 14, 2026): 1) Petitioner and his sons; 2) Petitioner and his wife; 3) Petitioner and his employer; 4) Petitioner's son Manuia and any other person when the former was acting at Petitioner's behest; 5) Petitioner's wife and any other person when the former was acting at Petitioner's behest; 6) Petitioner (or his family) and any attorney they did not retain which have not previously been produced through Respondent's subpoena for the workers compensation file (the request does not seek communications with retained counsel). To the extent that Petitioner asserts a claim of attorney-client privilege, Petitioner shall provide a privilege log.

REQUEST FOR PRODUCTION OF DOCUMENTS NO. 7: All DOCUMENTS¹ reflecting YOUR pursuit of workers' compensation benefits as a result of the INCIDENT.

RESPONSE TO REQUEST FOR PRODUCTION OF DOCUMENTS NO. 7: Objection. The request is vague, ambiguous, overbroad, too general, and not reasonably particularized, as required by Code of Civil Procedure section 2031.030(c)(1), especially due to the use of the terms "All DOCUMENTS," including the extremely overbroad definition of "DOCUMENTS," "YOUR," including the overbroad definition of same, "pursuit," and "worker's compensation benefits." These deficiencies make responding to the request unduly burdensome, and essentially impossible, as it is unclear what is sought by the request. The request also seeks information and documents protected from disclosure by the attorney client privilege and attorney work product doctrine. The request seeks information that is not relevant nor reasonably calculated to lead to the discovery of admissible evidence.

Respondent seeks Petitioner's worker's compensation files (e.g., letters, emails, applications, etc.) from before Petitioner retained a worker's compensation law firm "in or around October 2024." Respondent seeks to discover who, if anyone, was representing Petitioner at this time in relation to his pursuit of worker's compensation benefits.

¹ "DOCUMENT" shall be deemed to include every record of every type, including but not limited to, information stored on any electromagnetic storage device, emails, faxes, any written, printed, typed, recorded or graphic matter, however produced or reproduced or stored, in the possession, custody or control of the defendant or any agent, employee or attorney of the plaintiff, and all drafts, notes or preparatory material concerned with said document, and every additional copy of such record or document where such copy contains any commentary, notation, or other change whatsoever that does not appear on the original or other copy of the document produced. "Document" shall be deemed to also include any summary of a document or documents called for hereafter.

The Court finds Respondent's request is overbroad as to time and scope, requests documents protected by attorney-client privilege, and is vague and ambiguous. The Court grants Respondent's request in part, in such that Petitioner shall provide any letters, emails, or applications, which have not previously been produced through Respondent's subpoena for the workers compensation file, relating to his pursuit of workers compensation benefits from the date of the incident (July 10, 2024) to when Petitioner hired a worker's compensation law firm in or around October 2024. To the extent that Petitioner asserts a claim of attorney-client privilege, Petitioner shall provide a privilege log.

Sanctions

The Court denies Respondent's request for sanctions.

TENTATIVE RULING #4:

RESPONDENT'S MOTION TO COMPEL FURTHER RESPONSE OF SPECIAL INTERROGATORY NO. 1 IS DENIED. RESPONDENT'S MOTION TO COMPEL FURTHER RESPONSE OF REQUESTS FOR PRODUCTION OF DOCUMENTS NOS. 4 AND 7 IS GRANTED IN PART AS INSTRUCTED IN THE TENTATIVE RULING. RESPONDENT'S REQUEST FOR SANCTIONS IS DENIED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.